

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Helen Terndrup	Team: Team # 6	CCRB Case #: 200803643	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 03/06/2008 12:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/6/2009	Precinct: 34
Date/Time CV Reported Thu, 03/06/2008 11:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/12/2008 2:32 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Robert Eiler	00474	897397	034 PCT
2. POM Juan Moreno	21165	935351	034 PCT
3. An officer			034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Byron Polanco	30339	927800	034 PCT
2. LT Kevin Colon	00000	915477	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Robert Eiler	Force: Sgt. Robert Eiler used physical force against § 87(2)(b)	A . Unfounded
B . SGT Robert Eiler	Abuse: Sgt. Robert Eiler supervised the entry and search of § 87(2)(b), in Manhattan.	B . Unsubstantiated
C . SGT Robert Eiler	Force: Sgt. Robert Eiler used physical force against § 87(2)(b)	C . Alleged Victim Uncooperative
D . SGT Robert Eiler	Abuse: Sgt. Robert Eiler seized § 87(2)(b)s property.	D . Unfounded
E . POM Juan Moreno	Force: PO Juan Moreno used pepper spray against § 87(2)(b)	E . Unfounded
F . An officer	Force: An officer used physical force against § 87(2)(b)	F . Unfounded

Synopsis

On March 6, 2008, at approximately 11:30 a.m., § 87(2)(b) and her boyfriend § 87(2)(b) were arguing in the lobby of § 87(2)(b) in Manhattan. The verbal dispute escalated when § 87(2)(b) hit § 87(2)(b) several times in the face. § 87(2)(b) called 911 to report the assault, and § 87(2)(b) ran upstairs. Four officers, identified as Lt. Kevin Colon, Sgt. Robert Eiler, PO Byron Polanco, and PO Juan Moreno of the 34th Precinct, responded to the building. In § 87(2)(b) on the § 87(2)(b) floor of the building, § 87(2)(b) was helping his girlfriend § 87(2)(b) with some housework in her home. § 87(2)(b) is the mother of § 87(2)(b). The officers knocked on § 87(2)(b)'s door, stating that they were looking for § 87(2)(b). § 87(2)(b) told the officers through the door that there was no one named § 87(2)(b) there. When the officers asked § 87(2)(b) to open the door, § 87(2)(b) refused, called 911, and asked to speak to IAB. While the officers were in the hallway outside, § 87(2)(b) § 87(2)(b) arrived and asked § 87(2)(b) through the door to let him inside the apartment. § 87(2)(b) opened the door to permit § 87(2)(b) but when he tried to close the door behind him, Sgt. Eiler allegedly pushed § 87(2)(b) in the chest, causing him to fall to the ground [**Allegation A**]. Sgt. Eiler then walked inside the apartment [**Allegation B**] and allegedly pushed § 87(2)(b) to the ground, causing her to fall down onto her side [**Allegation C**]. Sgt. Eiler took a piece of paper away from § 87(2)(b) on which § 87(2)(b) had been recording the officers' names [**Allegation D**]. PO Polanco and PO Moreno entered the apartment after Sgt. Eiler and walked through the apartment, realizing that § 87(2)(b) § 87(2)(b) was not inside the apartment. As the officers were leaving, § 87(2)(b) asked Sgt. Eiler how the officers could expect him to treat them with respect. Sgt. Eiler allegedly replied, "You know what? I don't like your attitude. Cuff him." When § 87(2)(b) moved away from the officers to avoid being handcuffed, Sgt. Eiler, PO Polanco, and PO Moreno used force to overcome § 87(2)(b)'s resistance and handcuff him. PO Moreno allegedly sprayed § 87(2)(b) with pepper spray while they were trying to handcuff him [**Allegation E**]. § 87(2)(b) alleged that as he was lying on the ground, an unidentified officer pressed an unknown sharp object into the left side of his torso [**Allegation F**].

§ 87(2)(g) it is recommended that **Allegations A, D, E, and F be closed as unfounded.** § 87(2)(g) it is recommended that **Allegation B be unsubstantiated.** § 87(2)(g) it is recommended that **Allegation C be closed as victim uncooperative.**

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) black male who has black hair and brown eyes. § 87(2)(b) § 87(2)(b) provided his first statement regarding this incident over the phone to IAB at the time the officers were outside his girlfriend's apartment [encl. 7a-c]. § 87(2)(b) provided his second statement regarding this incident to EMS workers who arrived to treat § 87(2)(b) when he was taken to the 34th Precinct stationhouse [encl. 24a-d]. On March 31, 2008, § 87(2)(b) was interviewed at the CCRB [encl. 11a-g]. § 87(2)(b) made a second complaint about the incident to IAB on April 21, 2008 [encl. 8a-d]. § 87(2)(g)

At approximately 10:30 a.m. on March 6, 2008, § 87(2)(b) was at his girlfriend § 87(2)(b)'s apartment. § 87(2)(b) lives on the § 87(2)(b) floor of § 87(2)(b) § 87(2)(b) and § 87(2)(b) were cleaning the apartment, and no one else was with them inside § 87(2)(b). Two police officers knocked on the door, stating that they were looking for a person named § 87(2)(b). These officers were later identified by their shields as PO Juan Moreno and PO Byron Polanco. As he was looking through the peephole in the door, § 87(2)(b) told the officers that there was no one named § 87(2)(b) at that location. The officers asked him to open the door, stating they had received a report of a dispute. § 87(2)(b) told the officers to stop harassing them, and when they had not left the hallway after five minutes, § 87(2)(b) called 911 and asked to speak to IAB. He spoke with Det. Falcon, who informed § 87(2)(b) that if there was no § 87(2)(b) at that location, he did not need to open the door. § 87(2)(b) hung up, and the officers continued to knock on the door and request that § 87(2)(b) open it.

After a few minutes had passed, § 87(2)(b) called IAB a second time and spoke with Det. Falcon again. Det. Falcon asked § 87(2)(b) if there was anyone named § 87(2)(b) that lived at that address.

§ 87(2)(b) said that § 87(2)(b) has a son named § 87(2)(b) but that he did not live at § 87(2)(b) and he and § 87(2)(b) had not seen § 87(2)(b) in a long time. A third officer, identified by his shield as Sgt. Robert Eiler, arrived at the scene and insisted that § 87(2)(b) open the door. Over the phone, Det. Falcon told § 87(2)(b) that since there was a supervising officer at the scene, he could open the door, although he did not need to let the officers into his apartment. At this time, § 87(2)(b)'s other son, § 87(2)(b), had arrived in the hallway and was standing outside the door, asking § 87(2)(b) to let him inside. § 87(2)(b) refused to provide § 87(2)(b)'s first name or any contact information for him. He stated that § 87(2)(b) does not live with § 87(2)(b).

§ 87(2)(b) opened the door to let § 87(2)(b) in. § 87(2)(b) walked inside, and then § 87(2)(b) stood in the doorway and asked the three officers, "May I help you?" Sgt. Eiler said, "We're looking for an § 87(2)(b)." § 87(2)(b) said that § 87(2)(b) did not live there, and he and § 87(2)(b) had not seen him recently. He said, "Have a good day," and then tried to close the door. Sgt. Eiler pushed § 87(2)(b) to the ground by pushing his hands against § 87(2)(b)'s chest and then walked inside the apartment. As § 87(2)(b) fell to the ground, he cried out, "Please don't shoot me! Please don't shoot me!" Sgt. Eiler then crossed the room and pushed § 87(2)(b) to the ground, causing her to fall down backwards onto her side. She received no injuries and told § 87(2)(b) that she was not hurt.

The officers entered the apartment, with Sgt. Eiler walking into the bedroom for between thirty seconds and one minute. He then walked into the living room and looked inside briefly. PO Moreno walked through the bathroom and the kitchen. In his CCRB interview, § 87(2)(b) alleged that Sgt. Eiler took a slip of paper away from him on which he had been recording the officers' names. However, § 87(2)(b) did not make such an allegation in either of his two statements to IAB. The officers were preparing to leave the apartment when PO Moreno asked § 87(2)(b) for his identification. § 87(2)(b) insisted that he did not need to provide his identification to the officers, after they had entered the apartment without their permission and assaulted him and § 87(2)(b). § 87(2)(b) asked Sgt. Eiler how the officers could expect him to have respect for them after they ransacked his apartment. Sgt. Eiler said, "You know what? I don't like your attitude. Cuff him." Sgt. Eiler approached § 87(2)(b) and tried to handcuff him by grabbing his arm and pulling it behind his back. § 87(2)(b) tried to move away from Sgt. Eiler to prevent being handcuffed. Sgt. Eiler then said, "This guy is strong," and asked the other two officers for help. When asked to describe how he had been handcuffed in more detail, § 87(2)(b) stated that PO Moreno had sprayed § 87(2)(b) with pepper spray after Sgt. Eiler asked him to assist in arresting § 87(2)(b). He did not mention any officer using pepper spray when he initially narrated his arrest during the interview. § 87(2)(b) also did not allege that any officer had used pepper spray in his statement to the EMS workers who responded to the 34th Precinct stationhouse to treat him, and he did not allege that he had been pepper-sprayed in either of his statements to IAB.

As the officers struggled to pull § 87(2)(b)'s arms behind his back to handcuff him, § 87(2)(b) dropped to the floor and continued to move his body around to avoid being handcuffed. Sgt. Eiler put his knee on § 87(2)(b)'s chest. While he was on the ground, § 87(2)(b) felt a sharp object against the left side of his torso. In his CCRB interview, § 87(2)(b) stated that he did not know what this was or who was holding it. He believed that an officer was holding this object against his side, but he was unable to describe any observations that he made which led him to this conclusion. However, in his April 21, 2008 statement to IAB, § 87(2)(b) claimed that the object was a jagged edge on a pair of handcuffs, and he stated that the officer who pressed the sharp edge against him was PO Moreno. He stated that the sharp object pressed into his side caused a "scar" to the left side of his torso.

After a brief struggle, the officers succeeded in handcuffing him. § 87(2)(b) stated that he did not make any statements to the officers regarding any injuries that he suffered at this point. In his second statement to IAB, made on April 21, 2008, § 87(2)(b) alleged that when PO Moreno, PO Polanco, and Sgt. Eiler were struggling to handcuff him, all three officers punched him and kneed him; however, § 87(2)(b) did not allege that any officer punched him or kneed him in his CCRB interview.

A lieutenant, identified as Lt. Kevin Colon, arrived at the scene at some point during the incident, but § 87(2)(b) did not recall when Lt. Colon had arrived. § 87(2)(b) was escorted outside. He estimated that the officers had been inside his apartment for about ten to fifteen minutes in total. When § 87(2)(b) exited the building, he heard Lt. Colon claim that § 87(2)(b) had escaped from the apartment via the building's fire escape. § 87(2)(b) believed that the officers were lying and stated that no one exited the apartment via the fire escape during the incident.

After he was placed in a cell at the 34th Precinct stationhouse, § 87(2)(b) told the officers that he was § 87(2)(b) and he was taken to § 87(2)(b) at

approximately § 87(2)(b) that day. § 87(2)(b) did not make any statements to the hospital's staff about the scar on his side, § 87(2)(b)

In his statement to IAB on April 21, 2008, § 87(2)(b) alleged that PO Moreno ripped two signs off his door as the officers were leaving and alleged that the officers dragged him down several flights of stairs when they were taking him out of the building. However, § 87(2)(b) did not make either of these allegations in his statement to the CCRB.

Results of Investigation

§ 87(2)(b) On March 13, 2008, the CCRB contacted § 87(2)(b) by phone. § 87(2)(b) provided a phone statement regarding the incident [encl. 12a]. § 87(2)(b) stated that on March 6, 2008, at approximately 11:30 a.m., she went to meet her boyfriend § 87(2)(b) at § 87(2)(b). While they were in the lobby, they got into an argument that escalated into a physical fight. § 87(2)(b) was trying to leave the building, but § 87(2)(b) was grabbing her by her hand and dragging her back inside the building. He began hitting her repeatedly, so § 87(2)(b) called 911 on her cell phone. § 87(2)(b) ran upstairs, and § 87(2)(b) assumed that he was going to his mother's apartment to hide from the police. Four officers responded to § 87(2)(b). § 87(2)(b) believed that two of the officers were police officers, and that the other two were a lieutenant and a captain, due to their white-shirted uniforms. § 87(2)(b) led the officers to the doorway of § 87(2)(b) mother's apartment and told them what had happened. She could hear § 87(2)(b) talking inside his mother's apartment through the closed door. To make sure that it was § 87(2)(b) voice she was hearing from inside the apartment, § 87(2)(b) called § 87(2)(b) cell phone, and then heard it ring inside the apartment.

When the police officers knocked on the door and asked for § 87(2)(b) § 87(2)(b) stepfather, identified as § 87(2)(b) who was inside the apartment, refused to open the door and stated that § 87(2)(b) was not there and that he did not know anyone by that name. The officers were standing outside the door for about twenty minutes, during which time § 87(2)(b) continued to refuse to open the door and to insist that nobody by the name of § 87(2)(b) lived there. Then a man (who § 87(2)(b) does not know) approached and asked the officers what was happening. The officers told him that they were looking for § 87(2)(b) and believed that he was inside the apartment. The man, identified as § 87(2)(b) § 87(2)(b) stated that he was § 87(2)(b) brother. § 87(2)(f) when § 87(2)(b) opened the door to allow § 87(2)(b) to enter, the officers followed him inside. § 87(2)(b) stated that the lieutenant and the captain went inside the apartment while the two police officers stayed outside in the hallway with her. Because the officers did not want her to get too close to the apartment, § 87(2)(b) did not witness § 87(2)(b)'s arrest, but she was able to hear what was happening inside the apartment. As she heard screaming and yelling inside the apartment, § 87(2)(b) inferred that § 87(2)(b) was resisting arrest. § 87(2)(b) was angry and was shouting at the officers that he was calling IAB. § 87(2)(b) was not inside the apartment at the time the officers entered. After § 87(2)(b) had been arrested, but while the officers and § 87(2)(b) were still standing in the hallway, § 87(2)(b) called § 87(2)(b)'s cell phone. § 87(2)(b) put the cell phone on speaker phone so that the police officers could hear the conversation. § 87(2)(b) was laughing at § 87(2)(b) and told her that he climbed out of the window onto the fire escape and then left the building.

§ 87(2)(b) and § 87(2)(b)

Two letters were mailed to § 87(2)(b) on March 19, 2008, and March 24, 2008. Three calls were made to § 87(2)(b) on 19, 2008, March 21, 2008, and March 24, 2008. On March 25, 2008, § 87(2)(b) contacted the investigator and stated that § 87(2)(b) did not want to get involved with this case, asking that § 87(2)(b) not be contacted again. When § 87(2)(b) made his formal statement to the CCRB, he reiterated that § 87(2)(b) did not want to be involved with this investigation.

§ 87(2)(b) refused to provide the first name or any contact information for § 87(2)(b) and he stated that § 87(2)(b) did not live with § 87(2)(b). As such, the CCRB was unable to identify or interview § 87(2)(b) regarding this incident.

Sgt. Robert Eiler, 34th Precinct

Sgt. Robert Eiler is a § 87(2)(b)-old white male who is § 87(2)(b). He has brown hair and brown eyes. He is assigned to the 34th Precinct. Sgt. Eiler provided his memo book entries for this incident, which record that at approximately 11:30 a.m. on March 6, 2008, he responded to a call for assistance made by the officers patrolling sector A [encl. 22a-c]. When they responded, the perpetrator refused the officers entry and pushed Sgt. Eiler. He was then arrested by the officers assigned to patrol sector A. On May 5, 2008, Sgt. Eiler was interviewed at the CCRB [encl. 23a-b].

On March 6, 2008, Sgt. Eiler worked a 0700 x 1600 tour. He was dressed in uniform and working with Lt. Kevin Colon as the patrol supervisor. The officers were assigned to a marked patrol car, RMP 2226. At approximately 11:30 a.m., he and Lt. Colon received a radio code 10-85 requesting an additional unit at § 87(2)(b). When they arrived at the scene, they spoke with the two officers patrolling sector A, PO Moreno and PO Polanco. The officers explained that a woman had reported that her boyfriend had beaten her and then had run inside § 87(2)(b) inside the building. The victim of the assault, § 87(2)(b) was present with PO Moreno and PO Polanco at this time, and Sgt. Eiler spoke to § 87(2)(b) when he arrived. § 87(2)(b) told Sgt. Eiler that she was familiar with the apartment where her boyfriend was staying, § 87(2)(b).

The officers walked up to § 87(2)(b) accompanied by § 87(2)(b) with the intention of finding her assailant. They knocked on the door of the apartment, but the person inside § 87(2)(b) identified as § 87(2)(b) refused to open the door. He made argumentative statements to the officers, saying, “No, you’re not coming in.” After the officers had waited in the hallway for several minutes, the brother of the assailant, who Sgt. Eiler believed to be a stepson of § 87(2)(b) arrived and unlocked the door for the officers, telling them that they could go inside to look for his brother. He did not know the name of this male. When the officers entered the apartment, they observed two people, identified as § 87(2)(b) and § 87(2)(b) inside. The officers tried to enter the apartment to conduct a cursory search of the apartment to see if the perpetrator of the assault was there and for the officers’ safety. However, § 87(2)(b) was trying to block the hallway inside the apartment and refused to move when the officers requested. He was flailing his arms as he tried to block their entry, and as soon as the officers tried to walk past § 87(2)(b) to enter the apartment, prior to the officers taking any other actions, § 87(2)(b) pushed Sgt. Eiler in the shoulder. At that point Sgt. Eiler determined that § 87(2)(b) would be arrested for pushing him and obstructing the officers’ work. When the officers attempted to place § 87(2)(b) in handcuffs, he resisted by flailing his arms and refusing to put the phone down upon several requests made by the officers. The officers pulled § 87(2)(b) on the ground to handcuff him, but § 87(2)(b) continued to flail his arms and kick his legs. Sgt. Eiler estimated that he, PO Moreno and PO Polanco struggled with § 87(2)(b) for several minutes before they were able to handcuff him. During this time, Lt. Colon was waiting outside in the hallway with § 87(2)(b). Sgt. Eiler did not see PO Moreno use pepper spray at any point during the incident. Sgt. Eiler stated that no one struck § 87(2)(b) with a sharp object. Sgt. Eiler also stated that he did not push § 87(2)(b) causing her to fall to the ground, at any point, and added that § 87(2)(b) never fell to the ground during the incident. Sgt. Eiler did not observe any injuries on § 87(2)(b) and did not hear him request medical treatment.

PO Juan Moreno, 34th Precinct

PO Juan Moreno is a § 87(2)(b)-old Hispanic male who is § 87(2)(b). He has black hair and brown eyes. He is assigned to the 34th Precinct. PO Moreno provided his first statement regarding this incident in his memo book, in which he recorded that at 11:26 a.m., PO Moreno and PO Polanco received a radio code 10-34 for an assault in progress at § 87(2)(b) [encl. 20a-c]. When the officers responded to the location at approximately 12:00 p.m., PO Moreno witnessed § 87(2)(b) refusing to open his apartment door upon police request, preventing the officers from affecting a lawful arrest for a previous assault. PO Moreno noted that § 87(2)(b) s stepson, § 87(2)(b) went into § 87(2)(b) s apartment after assaulting his girlfriend in the lobby of § 87(2)(b). While § 87(2)(b) refused to open his door, § 87(2)(b) escaped through the fire escape. Once § 87(2)(b) s other stepson arrived at the scene, he allowed the officers to enter the apartment. § 87(2)(b)

§ 87(2)(b) then intentionally pushed Sgt. Robert Eiler and started swinging his arms with closed fists and cursing, but he caused injuries. PO Moreno was interviewed at the CCRB on May 5, 2008 [encl. 21a-b].

On March 6, 2008, PO Moreno worked a 0705 x 1340 tour. His partner was PO Byron Polanco. The officers were dressed in uniform and assigned to a marked patrol car. They were assigned to patrol sector A of the 34th Precinct. At approximately 12:00 p.m., PO Moreno and PO Polanco responded to a radio code 10-34 for an assault in progress at § 87(2)(b) in Manhattan. When they arrived at the building, they met the victim of the assault, § 87(2)(b) who stated that she had been assaulted by her boyfriend, who was presently inside § 87(2)(b) in the building. § 87(2)(b) told the officers that she knew her boyfriend's present location because he had called her cell phone and told her that he was in § 87(2)(b). The officers went to § 87(2)(b) and § 87(2)(b) walked with them. PO Moreno and PO Polanco knocked on the door of § 87(2)(b) and told the occupants of the apartment that they were looking for § 87(2)(b) and wanted to make sure that § 87(2)(b) was not inside that apartment. The man inside the apartment, identified as § 87(2)(b) replied, "Don't come in here. He [doesn't] live here. I'm going to call IAB." PO Moreno and PO Polanco decided to call the patrol supervisor to the scene after § 87(2)(b) refused to open the door. Sgt. Robert Eiler and Lt. Kevin Colon then responded to the scene while the officers were still waiting in the hallway.

After the officers were had been waiting in the hallway for approximately five to ten minutes, § 87(2)(b)'s other stepson, identified as § 87(2)(b) arrived outside § 87(2)(b). PO Moreno did not know the name of this individual. The officers told § 87(2)(b) that they were looking for § 87(2)(b). § 87(2)(b) stated that § 87(2)(b) was his brother and that § 87(2)(b) did not live inside § 87(2)(b). However, § 87(2)(b) agreed to open the door for the officers and stated that they could enter and look for § 87(2)(b). § 87(2)(b) unlocked the door of § 87(2)(b) with his own key, and Sgt. Eiler, PO Moreno, and PO Polanco entered the apartment. Lt. Colon waited outside in the hallway with § 87(2)(b). Once they were inside, the officers walked around the apartment, looking for § 87(2)(b) but they did not find him. There were only two people inside the apartment, § 87(2)(b) and § 87(2)(b). § 87(2)(b) appeared very aggravated to PO Moreno. As soon as the officers entered the room, § 87(2)(b) started swinging his arms, and one of his fists connected with Sgt. Eiler's body. PO Moreno did not recall exactly where on Sgt. Eiler's body § 87(2)(b) struck him. He stated that no officer had touched § 87(2)(b) prior to this. After § 87(2)(b) had struck Sgt. Eiler, PO Polanco attempted to handcuff § 87(2)(b) but § 87(2)(b) resisted by moving his arms and refusing to put his hands behind his back. He also tried to grab onto the officer's uniforms and push them away from him. Sgt. Eiler and PO Moreno helped PO Polanco handcuff § 87(2)(b) by pulling § 87(2)(b) onto the ground so that he was lying facing upwards. The officers lifted § 87(2)(b) up and handcuffed him. PO Moreno estimated that it took the officers about seven minutes to overcome § 87(2)(b)'s resistance and secure the handcuffs on his wrists. PO Moreno stated that no officer used pepper spray during the incident. He did not hear § 87(2)(b) make any statements about being injured and did not observe any injuries on § 87(2)(b)'s person.

PO Byron Polanco, 34th Precinct

PO Byron Polanco is a § 87(2)(b)-old Hispanic male who § 87(2)(b). He has black hair and brown eyes. He is assigned to the 34th Precinct. PO Polanco provided his first statement regarding this incident in his memo book, which notes that at approximately 11:26 a.m., he received a radio code 10-34 at § 87(2)(b). He arrived at the scene at approximately 12:00 p.m. and witnessed § 87(2)(b) (date of birth § 87(2)(b) arrest #§ 87(2)(b) refusing to open his apartment door for the police, preventing PO Polanco from affecting a lawful arrest for a previous § 87(2)(b). The assault had involved § 87(2)(b)'s step-son, § 87(2)(b) (date of birth § 87(2)(b)), who had gone into § 87(2)(b)'s apartment after intentionally assaulting his girlfriend in the lobby of § 87(2)(b). While § 87(2)(b) refused to open his door for the officers, § 87(2)(b) was able to leave the building using the fire escape. Once § 87(2)(b)'s other step-son arrived at the scene, he allowed PO Polanco to enter the apartment. When the officers entered, § 87(2)(b) began swinging his arms with his fists held closed, cursing, and refusing and preventing PO Polanco from affecting a lawful arrest of § 87(2)(b). Lt. Colon was present at the scene. No injuries were sustained. Prior to the officers entering the apartment with the permission of § 87(2)(b)'s step-son, § 87(2)(b) called IAB and made false allegations of being harassed and brutalized by the police, identifying himself as § 87(2)(b) to IAB. § 87(2)(b) called IAB while the officers were outside in the hallway, and § 87(2)(b).

§ 87(2)(b) was inside the apartment with his door closed. Sgt. Eiler, Lt. Colon, and § 87(2)(b) witnessed the incident.

PO Polanco provided another statement regarding this incident in the handwritten complaint report he completed [encl. 14a-d]. In this he recorded that § 87(2)(b) had refused to open his door for the police, preventing PO Polanco from making the lawful arrest of his stepson § 87(2)(b) for a previous assault and allowing § 87(2)(b) to exit the building from the fire escape. When the officers entered the apartment, after they had been allowed inside by another stepson of § 87(2)(b) § 87(2)(b) pushed Sgt. Eiler and then began swinging his closed fists and cursing at the officers. The Omniform complaint report contains the same narrative [encl. 15a-b], as does the OLBS arrest worksheet [encl. 16a-b], the Omniform arrest report [encl. 17a-b], the BADS arrest report [encl. 18a], and the criminal court complaint [33a-b]. On May 9, 2008, PO Byron Polanco was interviewed at the CCRB [encl. 19a-c].

On March 6, 2008, PO Polanco was working a 0705 x 1540 tour. He was assigned to patrol sector A with PO Juan Moreno. The officers were dressed in uniform and assigned to a marked patrol car, RMP 2330. At approximately 11:26 a.m. on March 6, 2008, PO Polanco and PO Moreno received a radio code 10-34 for an assault in progress at § 87(2)(b). When the officers arrived at the scene at approximately 12:00 p.m., they spoke with the victim of the assault, § 87(2)(b) in the lobby of the building. § 87(2)(b) told the officers that her boyfriend, § 87(2)(b) had punched her in the face in the lobby and then run upstairs to his mother's apartment, which is on the § 87(2)(b) floor of § 87(2)(b). PO Polanco observed that § 87(2)(b) had a black eye. § 87(2)(b) led PO Polanco and PO Moreno upstairs to the fourth floor, to the apartment where § 87(2)(b) mother lives.

The officers knocked on the door. The man inside the apartment, identified as § 87(2)(b) asked the officers who they were without opening the door. PO Polanco replied, "New York City Police Officer Polanco, from the 34th Precinct, in regards to an assault that happened." § 87(2)(b) also spoke to § 87(2)(b) through the door of the apartment, and § 87(2)(b) told her, "§ 87(2)(b) is not here." PO Polanco asked § 87(2)(b) again to open the door because § 87(2)(b) had stated that § 87(2)(b) was inside. Again § 87(2)(b) refused, and then added, "I'm going to call Internal Affairs, because this is Homeland Security. You guys don't know who you're dealing with here." PO Polanco then heard § 87(2)(b) dial the phone and heard him say, "My name is § 87(2)(b) I'm being brutalized by the police. I'm being harassed." At this point, PO Polanco decided to call his supervisor, Sgt. Eiler, to the scene. He had been outside the apartment for about eight to ten minutes before he called for the sergeant.

While they were waiting for the sergeant to arrive, § 87(2)(b) received a call from § 87(2)(b) on her Nextel cell phone. § 87(2)(b) allowed PO Polanco to listen to the phone as § 87(2)(b) said to her, "I don't know what you're doing, because I already saw the police coming into the building." When Sgt. Eiler and Lt. Colon arrived, they joined PO Polanco and PO Moreno in the hallway. Shortly thereafter, another man walked down the hallway toward the officers. He stopped in front of the door where the officers were waiting and asked the officers what was going on. PO Polanco stated that he did not know this person's name. PO Polanco told him that the officers were looking for a person named § 87(2)(b). The man stated that he was § 87(2)(b) brother and that he lived in the apartment the police officers had been trying to get into. He also stated that he knew § 87(2)(b) and confirmed that she was his brother's girlfriend. The man then said that the officers could go inside the apartment if they wanted, although he doubted that § 87(2)(b) was there. He unlocked the door himself and allowed the officers to enter.

Sgt. Eiler, PO Moreno, and PO Polanco entered the apartment, while § 87(2)(b) waited in the hallway. PO Polanco did not recall if Lt. Colon entered the apartment or waited in the hallway. When they entered, PO Polanco saw that there were two people inside, § 87(2)(b) and a woman that PO Polanco believed was his wife (identified as § 87(2)(b) § 87(2)(b) was cursing, saying, "Fuck the police!" He also said, "This is Homeland Security. You don't know who I work for." PO Polanco did not know what § 87(2)(b) was referring to when he mentioned Homeland Security. As they walked inside, § 87(2)(b) was still on the phone. He screamed that he never gave the officers permission to enter the apartment. Shortly after the officers entered the apartment to look for § 87(2)(b) § 87(2)(b) pushed Sgt. Eiler into the wall and then began swinging his arms with his fists closed. No officer had touched § 87(2)(b) at the time that he pushed Sgt. Eiler. At this point, Sgt. Eiler told PO Polanco and PO Moreno to place § 87(2)(b) under arrest. PO Polanco stated that up until the point when § 87(2)(b) pushed Sgt. Eiler, he had had no intention of arresting § 87(2)(b) and his only intention in entering the apartment was to find § 87(2)(b).

§ 87(2)(b) resisted being handcuffed by swinging his arms and holding his body tense. He also fell backward on to the ground and waved his arms. Sgt. Eiler, PO Polanco, and PO Moreno needed to

lift § 87(2)(b) and turn him onto his side so that he could be handcuffed. The officers had to use two pairs of handcuffs linked together to restrain § 87(2)(b) because of his resistance. During the incident, § 87(2)(b) appeared frightened, so PO Moreno spoke to her in Spanish and told her that everything was okay, and that they were just looking for her son. As the officers were escorting § 87(2)(b) out of the building, they passed § 87(2)(b). § 87(2)(b) told the officers, "Listen, listen to this," and allowed PO Polanco to listen to her cell phone. PO Polanco heard § 87(2)(b) laughing and saying, "I already left through the fire escape."

PO Polanco stated that no officer used pepper spray on § 87(2)(b) during the incident, and no officer poked § 87(2)(b) in the side with a sharp object. PO Polanco did not observe any injuries on § 87(2)(b) following his arrest, nor did he hear § 87(2)(b) complain of any injuries. At the stationhouse, § 87(2)(b) told PO Polanco that he had diabetes, and PO Polanco then called EMS so that § 87(2)(b) could receive medical treatment for his diabetes.

Lt. Kevin Colon, 34th Precinct

Lt. Kevin Colon is a § 87(2)(b)-old Hispanic male who has gray hair and brown eyes. § 87(2)(b) Lt. Colon is assigned to the 34th Precinct. Lt. Colon provided his memo book entries for this incident, which record that at 12:30 p.m., he responded to an apartment at § 87(2)(b) [encl. 24a-c]. One arrest was made at the location for § 87(2)(b). The IAB Log number was 08-09114. The SPRINT job number was § 87(2)(b). All notifications to IAB were completed. On September 24, 2008, Lt. Colon was interviewed at the CCRB [encl. 25a-c].

On March 6, 2008, Lt. Colon was working a 0650 x 1535 tour. He was dressed in uniform and assigned as the replacement lieutenant for the 34th Precinct. He was assigned to a marked patrol car, RMP 2226, and Sgt. Robert Eiler was assigned as his operator. At approximately 12:30 p.m., Lt. Colon and Sgt. Eiler responded to an assault in progress at § 87(2)(b). When Lt. Colon and Sgt. Eiler arrived at the scene, they walked upstairs to § 87(2)(b). In the hallway they encountered PO Polanco, PO Moreno, and the female victim of the assault, identified as § 87(2)(b). Lt. Colon observed that § 87(2)(b) had § 87(2)(b). § 87(2)(b) told Lt. Colon and Sgt. Eiler that she had been in an argument with her boyfriend, and he had slapped her several times in the face. She indicated that her boyfriend then entered § 87(2)(b) and was inside the apartment at that time. She also stated that her boyfriend regularly resides at this apartment. Lt. Colon believed that prior to his arrival at the scene, PO Polanco and PO Moreno had been knocking on the door, identifying themselves as police officers, and been asking to speak to the occupants of the apartment. Lt. Colon did not recall if PO Moreno and PO Polanco indicated to him that they had already tried to enter the apartment or if they had indicated that the person inside the apartment was being uncooperative with their investigation.

Lt. Colon began speaking to § 87(2)(b) asking her if she was sure that her boyfriend was inside the apartment. She said yes and stated that she had seen him go inside the apartment. A male inside the apartment, identified as § 87(2)(b) cracked the door open while holding a phone to his ear, and looked at Lt. Colon's nameplate. The man said into the phone, "Oh, Colon," and then shut the door. There was no chain on the door at the point when § 87(2)(b) opened the door. § 87(2)(b) told the officers through the door that he was on the phone with IAB. The officers could hear him speaking on the phone through the door, but Lt. Colon was unable to hear § 87(2)(b)'s other comments. While Lt. Colon was speaking to § 87(2)(b) Sgt. Eiler, PO Polanco, and PO Moreno entered the apartment simultaneously. Lt. Colon did not directly observe them enter, as he was talking to § 87(2)(b) at the time. He did not believe that the officers used any force to gain entry. He did not witness the officers physically trying to gain entry to the apartment prior to the point at which they entered, but he had heard the officers telling the person inside the apartment to "open up the door." Lt. Colon stated that he did not know why Sgt. Eiler, PO Polanco, and PO Moreno entered the apartment. He did not tell them to enter the apartment, and he did not intend for them to enter the apartment at that point. His intention at the time was only to assess the situation.

After door shut behind Sgt. Eiler, PO Moreno, and PO Polanco, Lt. Colon heard a small commotion inside the apartment, which sounded to him like people moving around and talking, but he could not hear what anyone inside the apartment was saying. He walked over to the door and tried to open it to make sure that the officers were safe, but when he twisted the doorknob, he found that the door was locked. He took no other steps to gain entry to the apartment and did not attempt to force the door open. He did not shout anything to the officers inside the apartment. A few minutes later, Sgt. Eiler, PO Polanco, and PO Moreno exited the apartment with § 87(2)(b) in handcuffs. The officers told Lt. Colon that § 87(2)(b)

§ 87(2)(b) had shoved Sgt. Eiler, and that was why he had been placed under arrest. Lt. Colon did not recall them telling him any other details or if they told him how they had gained access to the apartment. When § 87(2)(b) was brought into the hallway, Lt. Colon noticed that he seemed irate, but he did not notice any injuries on § 87(2)(b).

Lt. Colon recalled that a male whose name he did not know (identified as § 87(2)(b)) arrived at the scene during the incident, but he did not recall at what point this male arrived. He did not know whether § 87(2)(b) lived at § 87(2)(b) or not, but believed that § 87(2)(b) was a relative of the male perpetrator. Lt. Colon recalled that § 87(2)(b) was making statements to him denigrating § 87(2)(b) as a “problem child” after he arrived in the hallway. He did not observe § 87(2)(b) speaking to any other officers at the scene, and Lt. Colon himself did not make any requests to § 87(2)(b). He stated that he believed § 87(2)(b) entered the apartment only after Sgt. Eiler, PO Polanco, and PO Moreno entered, but he was not sure if this male entered immediately after the three officers did, or if he entered after they had exited the apartment. Lt. Colon stated that the officers had probable cause to arrest the man who had slapped the female if they had seen him, but he stated that they had not seen him before he went inside the apartment.

Lt. Colon believed that there was an older female inside the apartment, but he did not know this woman’s name. He stated that he did not observe her have any interactions with the officers, and he himself did not speak to her. Lt. Colon did not know if § 87(2)(b) was pepper-sprayed or not. He stated that the perpetrator they had been looking for was able to escape from the apartment and was not arrested at the scene, but he did not know how this individual had escaped. He stated that § 87(2)(b) was in the hallway outside the apartment throughout the entire incident.

Medical Records

§ 87(2)(a) PHL § 18(6)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

A subpoena for § 87(2)(b)’s medical records was submitted to § 87(2)(b) on April 1, 2008 [encl. 27b]. On April 29, 2008, the Health Information Management Department returned a letter stating that the patient’s name was not on file, and they were unable to locate any records documenting § 87(2)(b)’s treatment. On June 19, 2008, the investigator contacted the Health Information Management Department to request a second check for § 87(2)(b)’s medical records. The spelling of § 87(2)(b)’s name was double-checked, and the operator confirmed with a second search that there were no records on file for § 87(2)(b). As § 87(2)(b) refused to provide his Social Security number to the CCRB, the investigation was not able to request a search for § 87(2)(b)’s records by his Social Security number.

The prearrest medical screening form for § 87(2)(b) prepared on March 7, 2008, shows that § 87(2)(b) stated that he was not sick and had no injuries [encl. 28a-c].

Communications Records

SPRINT job § 87(2)(b) records that at 11:23 a.m., a female was assaulted by her boyfriend in the hallway and lobby of § 87(2)(b) Sector A from the 34th Precinct responded at 11:25 a.m. At 11:33 a.m., Sector A requested an additional unit with a sergeant. At 11:35 a.m. an anonymous male caller requested IAB at the scene, stating that there were guns drawn at the location. The communications CD was transcribed as follows.

At 11:23 a.m., an anonymous female caller contacted police operator 2309 and reported that she was witnessing a young woman getting beaten up by a man in a hallway of § 87(2)(b). She heard a woman screaming and the man yelling at her.

At 11:23 a.m., an anonymous female caller § 87(2)(b) contacted 911 operator 1930 and reported that her boyfriend was “hitting her and hitting her” and then had run into his mother’s apartment inside the building. She stated that she knew the mother’s apartment number but did not provide it. She said that she was presently on the first floor of § 87(2)(b). She said she did not need an ambulance.

At 11:35 a.m., an unidentified man § 87(2)(b) called 911 and stated that there were two uniformed police officers banging on his door and harassing him. He stated that the officers had a gun pointed at him and were threatening to shoot him. He asked to speak to Internal Affairs. He gave his location as § 87(2)(b) in Manhattan. 911 operator 2226 contacted IAB, and Detective Falcon

came on the line and spoke with the unidentified man. The male caller stated the officers refused to give him their badge numbers. He said they were looking for someone named § 87(2)(b). He believed the officers were from the 34th Precinct. The male caller later called IAB again and stated that officers were still harassing him. He stated he had already filed a complaint with IAB and that he had told the officers that the person they were looking for did not live there. He stated the officers had their guns drawn, and they were threatening him to make him open the door.

Police Department Documents

The roll call for the 34th Precinct shows that Sgt. Eiler was assigned as the supervising officer for the second tour [encl. 30a-n]. PO Moreno and PO Polanco were assigned to patrol sector A in RMP 2330. The command log for the 34th Precinct shows that at 12:00 p.m., PO Polanco brought § 87(2)(b) into the stationhouse as an arrest for § 87(2)(b) [encl. 31a-l]. The entry notes that Lt. Colon was at the scene when § 87(2)(b) was arrested. His physical and mental condition was listed as normal. § 87(2)(b) was transported to Manhattan Central Booking at 6:20 p.m.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB Histories

§ 87(2)(b) has no prior CCRB complaints [encl. 5a].

§ 87(2)(b) has no prior CCRB complaints [encl. 6a].

Officer CCRB Histories

Sgt. Robert Eiler has not received any disciplinary action as a result of any CCRB allegations in his seventeen years of service to the NYPD [encl. 3a-b].

PO Juan Moreno has not received any disciplinary action as a result of any CCRB allegations in his three years of service to the NYPD [encl. 4a].

Conclusions and Recommendations

Identification of Subject Officers

§ 87(2)(b) identified Sgt. Eiler by name and physical description as the officer who pushed him to the ground and then pushed § 87(2)(b) § 87(2)(g)

§ 87(2)(b) identified Sgt. Eiler by name as the officer who took the slip of paper with the officers' names and shield numbers on it from him, § 87(2)(g).

§ 87(2)(b) identified PO Moreno by name as the officer who used pepper spray on him. § 87(2)(g)

Undisputed Facts

It is undisputed that PO Moreno and PO Polanco arrived outside § 87(2)(b) at § 87(2)(b) after § 87(2)(b) reported that she had been assaulted by her boyfriend. It is undisputed that § 87(2)(b) did not allow PO Moreno and PO Polanco to enter his apartment to see if § 87(2)(b) was inside, and that he called IAB and reported that the officers at the scene were harassing him. It is undisputed that § 87(2)(b) arrived at § 87(2)(b) while the officers and § 87(2)(b) were outside. It is undisputed that when officers were placing § 87(2)(b) under arrest, he resisted being handcuffed by pulling away from them and flailing his arms.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

[illegible]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) admitted that he resisted being handcuffed by moving his body away, dropping to the ground, and struggling. PO Polanco, PO Moreno, and Sgt. Eiler each confirmed that they used physical force to overcome § 87(2)(b)'s resistance to being handcuffed by grabbing onto his arms and pulling them behind his back. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation A) Force: Sgt. Robert Eiler used physical force against § 87(2)(b)

Sgt. Eiler, PO Moreno and PO Polanco stated that no officer had touched § 87(2)(b) at the time that he began swinging his fists at Sgt. Eiler. § 87(2)(g)

§ 87(2)(b)

Therefore, it is recommended that **Allegation A be unfounded.**

Allegation B) Abuse of Authority: Sgt. Robert Eiler supervised the entry and search of § 87(2)(b) in Manhattan.

According to *New York Search and Seizure*, an accusation against a specific individual from the eyewitness-victim of a crime is sufficient to establish probable cause [encl. 1a-b]. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

it is recommended that **Allegation B be unsubstantiated.**

Allegation C) Force: Sgt. Robert Eiler used physical force against § 87(2)(b)

§ 87(2)(b) alleged in his CCRB interview that Sgt. Eiler pushed § 87(2)(b) to the ground after the officers entered her apartment. He did not make this allegation in his initial call to IAB or when he filed a second complaint with IAB on April 21, 2008. § 87(2)(b) also told the CCRB that § 87(2)(b) did not want to be involved in this investigation. Therefore, it is recommended that **Allegation C be closed as victim uncooperative.**

Allegation D) Abuse of Authority: Sgt. Robert Eiler seized § 87(2)(b)'s property.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

it is therefore recommended that **Allegation D be unfounded.**

Allegation E) Force: PO Juan Moreno used pepper spray against § 87(2)(b)

§ 87(2)(b) made no statements about being sprayed with pepper spray to the EMS workers who treated him at the 34th Precinct stationhouse, and he did not make any allegation regarding the use of pepper spray when he filed a second complaint with IAB on April 21, 2008. All three officers denied that § 87(2)(b) had been pepper-sprayed. § 87(2)(g)

§ 87(2)(b)

it is recommended that **Allegation E be unfounded.**

Allegation F) Force: An officer used physical force against § 87(2)(b)

In his CCRB interview, § 87(2)(b) alleged that one of the three officers who handcuffed him pressed a sharp object into his side while he was on the ground, which each of the officers denied. § 87(2)(g)

§ 87(2)(b)

it is recommended that **Allegation F be unfounded.**

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: